

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Ben James	Team: Squad #08	CCRB Case #: 202307115	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 07/11/2023 8:45 PM	Location of Incident: In front of the 69th Precinct Stationhouse	18 Mo. SOL 1/11/2025	Precinct: 69		
Date/Time CV Reported Wed, 08/02/2023 8:44 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 08/02/2023 8:44 AM		
Complainant/Victim	Type	Home Address			
Subject Officer(s)	Shield	TaxID	Command		
1. PO Briana Parker	11240	966257	069 PCT		
2. SGT Saidul Islam	01615	936798	069 PCT		
Witness Officer(s)	Shield No	Tax No	Cmd Name		
1. PO Nataly Sampedro	26822	969350	069 PCT		
Officer(s)	Allegation	Inv. Div. Recommendation			
A . PO Briana Parker	Abuse: Police Officer Briana Parker issued a retaliatory summons to § 87(2)(b)	A . Unfounded			
B . SGT Saidul Islam	Abuse: Sergeant Saidul Islam interfered with § 87(2)(b) use of a recording device.	B . Substantiated			

Case Summary

On July 13, 2023, § 87(2)(b) filed this complaint via the CCRB's Call Processing System (BR 1).

On July 11, 2023, at approximately 8:45 PM in front of 9720 Foster Avenue in Brooklyn, Police Officer Brianna Parker, Sergeant Saidul Islam, and Police Officer Nataly Sampedro of the 69th Precinct pulled over § 87(2)(b) vehicle and issued him a summons. PO Parker issued a retaliatory summons to § 87(2)(b) (**Allegation A: Abuse of Authority, Unfounded**) and Sergeant Islam interfered with § 87(2)(b) use of a recording device (**Allegation B: Abuse of Authority, Substantiated**). Officers issued § 87(2)(b) two summonses during this incident (BR 9 and 10).

The investigation obtained body-worn camera footage (BWC 6, 7, and 8) from all officers involved and Dual View Camera footage of PO Parker's vehicle (BR 9).

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Brianna Parker issued a retaliatory summons to § 87(2)(b)

PO Parker's BWC (BR 6) captures none of this event; however, the Dual View Camera (BR 9) on the patrol vehicle recorded part of the first interaction officers had with § 87(2)(b) from 0:00 to 0:16. This video did not record audio. The video shows § 87(2)(b) with his window down, talking to officers.

PO Parker's BWC (BR 6) captures the initial stop leading up to § 87(2)(b) receiving his summonses. At 03:30, § 87(2)(b) argues with officers, claiming that they are harassing him. § 87(2)(b) acknowledges honking at the officers and states that he did not know who they were, and that they were driving below the speed limit and aggravating people. PO Islam tells § 87(2)(b) that he was tailgating the officers' vehicle too closely. The officers repeatedly try to explain the situation; however, § 87(2)(b) repeatedly interrupts them.

At 05:40, PO Parker informs § 87(2)(b) that he was pulled over for excessive honking, tailgating the officers, and driving without his lights on. § 87(2)(b) continues to argue at length with the officers and seems to acknowledge committing the infractions, though he argues that he was justified in doing so because the officers did not immediately identify themselves and were driving below the speed limit, which aggravated him.

§ 87(2)(b) complains throughout the entire video about the summonses, but never mentions a second conversation with PO Parker in which he requested her information and told her he was going to file a complaint against her.

§ 87(2)(b) testified to the CCRB on July 27, 2023 (BR 2) that he was driving on Glenwood Road near 94th Street in Brooklyn when he encountered PO Parker. § 87(2)(b) was behind PO Parker's unmarked vehicle going 15 MPH in a 25 MPH zone. § 87(2)(b) was unaware that this vehicle was a police vehicle. § 87(2)(b) began honking at PO Parker and PO Parker then got out of her patrol vehicle and asked § 87(2)(b) "why are you road raging?" PO Parker got back in her patrol vehicle and continued to drive at a significantly slower speed. When they reached Boyton Avenue, § 87(2)(b) pulled up next to PO Parker and asked for her name and shield number, which she provided. § 87(2)(b) then stated that he wanted to file a complaint against her for her driving. § 87(2)(b) drove two blocks to the stationhouse while PO Parker followed him with her

lights on.

Once he turned into the stationhouse PO Parker pulled him over and issued him two summonses for driving with expired insurance and for his excessive honking.

PO Parker testified to the CCRB on December 4, 2023, (BR 10) that on July 11, 2023, at approximately 8:45 p.m., she was driving northbound on 94th and Foster Avenue in an unmarked patrol vehicle. She was driving at less than 15 MPH. PO Parker was conducting a canvass of the area where a robbery had occurred earlier that day. § 87(2)(b) vehicle began tailgating PO Parker's patrol vehicle, being less than a car length away from and honking his horn excessively. PO Parker continued her canvassing efforts while § 87(2)(b) continued to use his horn excessively. PO Parker had no room to let § 87(2)(b) through as they were on a road that was a one-way street with cars on both sides of the road. This honking and tailgating continued for approximately one or two blocks. PO Parker and her supervisor, Sgt. Islam, decided to get out of her vehicle and identify themselves as officers. PO Parker asked § 87(2)(b) what the rush was. § 87(2)(b) began to "wave off" PO Parker and stated something she could not understand, as § 87(2)(b) window was up throughout this interaction. The officers then continued down the street while § 87(2)(b) continued to honk his horn and tailgate the officer's vehicle.

Sgt. Islam then instructed PO Parker to pull § 87(2)(b) over for his traffic violations. PO Parker pulled over to let § 87(2)(b) vehicle through as there was an open space. § 87(2)(b) drove up next to PO Parker's vehicle and began yelling at PO Parker. § 87(2)(b) said to PO Parker, "you are not doing anything; you just want to harass people." PO Parker asked what his rush was, and § 87(2)(b) responded he had places to be and then accelerated very quickly away from the patrol vehicle. § 87(2)(b) was speeding and was close to causing an accident with another car. After a few blocks PO Parker caught up to § 87(2)(b) and eventually pulled him over as he was turning onto Rockaway Avenue and Foster Avenue, which is right in front of the 69th precinct stationhouse. PO Parker pulled § 87(2)(b) over because he was excessively using his horn, tailgating the officer's vehicle, and not using headlights (BR 10).

Sgt. Islam testified to the CCRB on December 21, 2023 (BR 11). Sgt. Islam's testimony was consistent with PO Parker's testimony.

It is undisputed that § 87(2)(b) utilized his horn. BWC footage shows that at no point throughout the interaction between PO Parker, Sgt. Islam, and § 87(2)(b) is there any mention or indication of the summons being retaliatory or that § 87(2)(b) planned to file a complaint at the stationhouse by either party. § 87(2)(g)

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§ 87(2)(b)
§ 87(2)(b) It is therefore recommended that **Allegation A** be closed as **Unfounded**.

Allegation (B) Abuse of Authority: Sergeant Saidul Islam interfered with § 87(2)(b) use of a recording device.

§ 87(2)(b) did not allege that Sgt. Islam interfered with his recording device. This allegation was instead captured on PO Parker's BWC (BR 6). As shown on PO Parker's BWC from 22:30-22:52, Sgt. Islam refuses to allow § 87(2)(b) to take a photo of his shield and states that § 87(2)(b) is not allowed to do so.

On PO Parker's BWC at 22:10, § 87(2)(b) requests PO Parker's shield number, which she provides along with her name. He then asks if he can take a picture of her shield, and she says he can.

§ 87(2)(b) requests Sgt. Islam's name and shield number, which he provides verbally. § 87(2)(b) then attempts to open his door. PO Parker asks him why he wants to get out of the vehicle. § 87(2)(b) responds that he wants to take a picture of Sgt. Islam's shield. PO Parker asks PO Islam if that is OK with him, and he says no. Sgt. Islam provides his name verbally again. § 87(2)(b) says that he wants to take a picture and Sgt. Islam states that he cannot.

Sgt. Islam testified to the CCRB on December 21, 2023 (BR 11) that during this traffic stop with § 87(2)(b) the officers got out of their vehicle and issued the summons to § 87(2)(b). § 87(2)(b) then asked officers for their names and shield numbers. Sgt. Islam believed that § 87(2)(b) took a photo of his shield, when he initially approached the vehicle, but he wanted to get a better picture. Sgt. Islam verbally provided his name and shield number three times to § 87(2)(b). § 87(2)(b) Sgt. Islam did not feel that it was safe if § 87(2)(b) got out of the car as it was dark, and § 87(2)(b) vehicle was in the middle of the intersection. Sgt. Islam stated that he knew that a civilian had the right to take a picture of a name and shield number, but at the time Sgt. Islam did not feel safe to pose for a picture with the traffic in this area as Foster and Rockaway Avenue was a busy intersection. There were no specific circumstances regarding the traffic during this incident that caused Sgt. Islam to feel unsafe, only normal traffic.

According to New York City Administrative Code 14-189, it states "A claim of unlawful interference with recording police activities is established under this section when an individual demonstrates that he or she recorded or attempted to record police activities...including preventing or attempting to prevent the recording of police activities and when officers are stopping and issuing any summons...because such individual recorded police activities:" (BR 17).

According to Administrative Guide 304-21, individuals have a right to lawfully observe and/or record police activity, a right which extends to individuals in public places such as streets, sidewalks, and parks. Members of service must not intentionally prevent, or attempt to prevent, an individual from recording police activities or threaten, intimidate, or otherwise discourage an observer from recording police activities. This right to observe and/or record police action can be limited for reasons such as the safety of officers or other members of the public, or when a violation of law is committed by the individual(s) who are observing/recording (BR 18).

This interaction lasted approximately 20 minutes, a sizable portion of which involved a conversation between PO Parker and § 87(2)(b). § 87(2)(b) did not give Sgt. Islam any indication that he was recording this interaction, but Sgt. Islam assumed that § 87(2)(b) photographed his shield already. After Sgt. Islam went back to his car, § 87(2)(b) exited his vehicle and approached the officers § 87(2)(g).

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It is recommended that **Allegation B** be closed as **Substantiated**.

Civilian and Officer CCRB Histories

- § 87(2)(b) [REDACTED]
- PO Parker has been a member of service for five years and this is the first CCRB complaint to which she has been a subject. (BR 14)
- Sgt. Islam has been a member of service for 18 years and has been a subject in six CCRB complaints and thirteen allegations, of which one was substantiated.: (BR 13)
202101429 involved substantiated allegations of discourtesy against Sgt. Islam. The Board recommended Command Discipline B and the NYPD imposed Command Discipline B.

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of 11/13/2023, the New York City Office of the Comptroller has no record that a Notice of Claim was filed in regard to this incident (BR 12).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]
- [REDACTED]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 8

Investigator:	<u>Ben James</u>	<u>Inv. Ben James</u>	<u>12/29/2023</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Ethan De Angelo</u>	<u>IM Ethan De Angelo</u>	<u>1/1/2024</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date